

25STCV24097 25STCV24097

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Case Number: 25STCV24097 Hearing Date: September 28, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
28, 2026

CASE NAME: David

Kay v. Mercedes-Benz USA, LLC, et al.

CASE NO.: 25STCV24097

MOTION

FOR SUMMARY JUDGMENT, OR ALTERNATIVELY, SUMMARY ADJUDICATION

MOVING PARTY: Plaintiff

David Kay

RESPONDING PARTY(S): Defendants Mercedes-Benz USA,
LLC and Mercedes-Benz of Southbay

REQUESTED RELIEF:

1. An
order granting summary judgment in Plaintiff's favor on the complaint; or

2. An

order granting summary adjudication in Plaintiff's favor on the following issues:

a. First

cause of action because it is undisputed that a warrantable defect caused the new, warranted Vehicle to spontaneously ignite and destroy itself, the presentation requirement is excused as a matter of law, and MBZ refused to repurchase or replace the Vehicle;

b. Second

cause of action because a new motor vehicle that spontaneously combusts is not fit for the ordinary purpose of providing safe transportation, and the implied-warranty claim requires no repair presentation;

c. Fifth

cause of action because it is derivative of, and rises and falls with, Plaintiff's state-law warranty claims, which are established as a matter of law;

d. Sixth

cause of action because it is undisputed that the Vehicle contained a manufacturing defect that caused it to catch fire while parked, unplugged, and not being driven – a failure no ordinary consumer would expect – and no external cause contributed to the fire; and

e. That

MBZ's failure to comply with the Song-Beverly Act was "willful" entitling Plaintiff to a civil penalty.

TENTATIVE RULING:

1. Motion

for summary judgment, or alternatively summary adjudication, is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On August 15, 2025, Plaintiff David Kay (Plaintiff) filed a complaint against Defendants Mercedes-Benz USA, LLC (Mercedes) and Mercedes-Benz of Southbay (Southbay) (sometimes collectively Defendants) with six causes of action for: (1) violation of lemon law and express warranty; (2)

breach of implied warranty of merchantability; (3) negligent repair; (4) misrepresentation; (5) violation of Magnuson-Moss Warranty Federal Trade Commission Improvement Act; and (6) strict products liability.

According to the complaint, Plaintiff leased a 2023 Mercedes Benz EQE350v (the Vehicle) from Defendants that developed defects during the warranty period. Specifically, Plaintiff alleges that the Vehicle had a defective battery that overheated, ignited, and destroyed property aside from the Vehicle. Plaintiff alleges that he had previously presented the Vehicle for maintenance/repairs and that Defendants did not disclose this defect.

On October 30, 2025, Plaintiff filed a request for dismissal of the third cause of action for negligent repair and the fourth cause of action for misrepresentation.

On November 4, 2025, Mercedes and Southbay (appearing as Carwell LLC dba Mercedes-Bena of Southbay) each filed an answer.

On November 7, 2025, Defendants filed a stipulation and order to strike and dismiss the third and fourth causes of action as well as punitive damages claims from the complaint which the court GRANTED.

On June 10, 2026, Plaintiff filed a motion for relief from jury waiver and posted jury fees which the court GRANTED.

On July 1, 2026, Plaintiff filed the instant motion for summary judgment, or alternatively, summary adjudication. On September 8, 2026, Defendants filed an opposition. On September 10, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, fn. omitted (Aguilar).) "Once the [movant] has met that burden, the burden shifts to the [other party] to show that a triable issue of one or more material facts exists as to that cause of action" (Code Civ. Proc., § 437c, subd. (p)(2); see Aguilar, supra, at p. 850.) The party opposing summary judgment "may not rely upon the mere allegations or denials of its pleadings," but rather "shall set forth the

specific facts showing that a triable issue of material fact exists”
(Code Civ. Proc., § 437c, subd. (p)(2).) A triable issue of material fact exists where “the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar, supra, at p. 850.)

When a plaintiff seeks summary judgment, he/she must produce admissible evidence on each element of each cause of action on which judgment is sought. (Code Civ. Proc., § 437c(p)(1).) When a defendant seeks summary judgment, he/she has the “burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code of Civ. Proc. § 437c(p)(2).)

The opposing party on a motion for summary judgment is under no evidentiary burden to produce rebuttal evidence until the moving party meets his or her initial movant's burden. (Binder v. Aetna Life Insurance Company (1999) 75 Cal.App.4th 832, 840.) Once the initial movant's burden is met, then the burden shifts to the opposing party to show, with admissible evidence, that there is a triable issue requiring the weighing procedures of trial. (Code Civ. Proc. § 437c(p).) The opposing party may not simply rely on his/her allegations to show a triable issue but must present evidentiary facts that are substantial in nature and rise beyond mere speculation. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162.) Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The pleadings dictate the scope of a motion for summary judgment. “The materiality of a disputed fact is measured by the pleadings [citations], which ‘set the boundaries of the issues to be resolved at summary judgment.’ [Citations.]” (Hutton v. Fid. Nat'l Title Co. (2013) 213 Cal. App. 4th 486, 493.) The pleadings here are challenging to decipher.

ANALYSIS:

Evidentiary

Objections

The court OVERRULES Plaintiff's evidentiary objections in full.

Summary

Judgment/Adjudication

Plaintiff contends summary judgment or adjudication is proper because there are no disputed facts that a battery defect caused the fire and resulting damages.

Defendants argue summary judgment is inappropriate because there are triable issues concerning causation, there was no attempts to repair, and no evidence of a manufacturing defect.

Plaintiff replies that Defendants concede all the facts, they do not need expert testimony to show a defect, and Defendants' engineer does not create a triable issue.

First Cause of

Action: Breach of Express Warranty

"A plaintiff pursuing an action under the Song-Beverly Act has the burden to prove the following elements: (1) the product had a defect or nonconformity covered by the express warranty; (2) the product was presented to an authorized representative of the manufacturer for repair; and (3) the manufacturer or its representative did not repair the defect or nonconformity after a reasonable number of repair attempts." (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 799.)

Here, the only elements in dispute are the existence of a defect or nonconformity and whether the reasonable number of attempts to repair element is excused.[1]

i.

Defect

Because Song-Beverly is remedial in nature, the plaintiff “is not obligated to identify or prove the cause of the car’s defect.” (Donlen v. Ford Motor Co. (2013) 217 Cal.App.4th 138, 149.) “Rather, he is required only to prove the car did not conform to the express warranty.” (Ibid.)

Here, Plaintiff met their initial burden that a defect or nonconformity covered by the express warranty existed. The provided evidence that the Vehicle was parked, not plugged in, was not charging, sent an alert via text to Plaintiff that the battery was overheating, and shortly thereafter spontaneously overheated and ignited. (UMF Nos. 6, 7, 8, 9.) This is circumstantial evidence of a defect.

Defendants, in turn, met their burden. Defendants provide evidence that the cause of the fire is undetermined. (UMF No. 16 [Declaration of Eric Wierman ¶ 8.]

But there is more.

ii.

Repair Attempts

Plaintiff argues this element is met because it is unreasonable to force them to demand repair when the defect destroyed the vehicle. Defendants argue the statute clearly requires at least one repair attempt.

Defendants are correct.

“The statute does not require the manufacturer to make restitution of replace a vehicle if it has had only one opportunity to repair that vehicle.” (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208.) “A single attempt does not meet the statutory threshold, so that there is no need for a trier of fact to determine its reasonableness.” (Id. at p. 1209.) “If anything, the statute indicates that even where the defect is life-threatening, one opportunity to repair is not enough.” (Ibid.) Based on this logic, at least one attempt is required.[2]

Here, Plaintiff did not meet his initial burden that he presented the Vehicle for repairs a reasonable number of times. In fact, there

are none because the first manifestation of the defect destroyed the Vehicle.
(UMF Nos. 8, 9, 10, 11.)

Accordingly, the court DENIES Plaintiff's motion for
summary judgment or adjudication on the first cause of action.

Second Cause of

Action: Breach of Implied Warranty of Merchantability

"Unless specific disclaimer methods are followed, an implied
warranty of merchantability accompanies every retail sale of consumer goods in
the state." (Carver v. Volkswagen Group
of America, Inc. (2024) 107 Cal.App.5th 864, 878 [quoting Civ. Code §
1792].) "This warranty includes a guarantee that the particular item is fit for
the ordinary purposes for which such goods are used." (Ibid. [citing Civ. Code § 1791.1(a)(2)].) "Breach of the implied
warranty of merchantability means the product did not possess even the most
basic degree of fitness for ordinary use." (Ibid.
[internal quotation marks omitted].) There is no requirement to provide the
manufacturer an opportunity to repair in an implied warranty claim. (Ibid.)

The elements of a claim for breach of the implied warranty
of merchantability are: lack of merchantability, causation, and damages. (Carver, supra, 107 Cal.App.5th at p.
888-889.) "An unmerchantable vehicle is typically unsafe or not suitable for
ordinary use." (Id. at p. 889.)

As discussed above and below, there is a triable issue of
fact as to whether the Vehicle had a defect rendering it unmerchantable. (UMF
Nos. 6-9, 16.)

Accordingly, the court DENIES Plaintiff's motion for
summary judgment or adjudication on the second cause of action.

Fifth Cause of

Action: Magnusson-Moss Warranty Act

The parties agree that the same reasoning as the first and
second causes of action applies to this claim (i.e., the fifth cause of action
stands or falls with the prior two). Since summary judgment or adjudication is
inappropriate for the first two claims, it is inappropriate here.

Accordingly, the court DENIES Plaintiff's motion for summary judgment or adjudication on the fifth cause of action.

Sixth Cause of
Action: Strict Products Liability

A product is defective if it: (a) contains a manufacturing defect when the product departs from its intended design even though all possible care was exercised in the preparation and marketing of the product; (b) is defective in design when the foreseeable risks of harm posed by the product could have been reduced or avoided by the adoption of a reasonable alternative design by the seller or other distributor, or a predecessor in the commercial chain of distribution, and the omission of the alternative design renders the product not reasonably safe; and (c) is defective because of inadequate instructions or warnings when the foreseeable risks of harm posed by the product could have been reduced or avoided by the provision of reasonable instructions or warnings by the seller or other distributor, or a predecessor in the commercial chain of distribution, and the omission of the instructions or warnings renders the product not reasonably safe. (Brady v. Calsol, Inc. (2015) 241 Cal.App.4th 1212, 1218-1219.)

Here, Plaintiff's claim is based on a manufacturing defect that differed from the manufacturer's design. (Compl. ¶¶ 147, 152.) So, to establish the subject vehicle contained a manufacturing defect, Plaintiff needs to establish Vehicle had a defect when it left Defendant's possession and that the defect was a substantial factor in causing Plaintiff's harm. Plaintiff did not do so.

Critically absent is evidence of a defect in the battery that departs from the intended design. Instead, Plaintiff provided circumstantial evidence of a defect due to the temporal closeness between notification of overheating and the fire. (UMF Nos. 6-9.) The court is not convinced this is sufficient to satisfy his burden.

Accordingly, the court DENIES Plaintiff's motion for summary judgment or adjudication on the sixth cause of action.

CONCLUSION:

For

the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for summary judgment, or alternatively summary adjudication, is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 28, 2026 _____ Upinder

S. Kalra

Judge

of the Superior Court

[1]

The court notes that Plaintiff met their burden on the remaining elements.

[2]

The court is not persuaded by Plaintiff's reliance on Gomez v. Volkswagen of America, Inc. (1985) 169 Cal.App.3d 921 since that case, decided on a demurrer, touches on Song-Beverly but does not discuss the reasonable number of attempts to replace a vehicle issue. And, while "[t]he law never requires impossibilities" (Civ. Code § 3531) it is clear, as discussed in Silvio, that Song-Beverly requires at least one attempt to repair. (Silvio, supra, 109 Cal.App.4th 1205, 1208.)